Section E: Contracts

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Effective date: Jan. 1, 2027. Review cycle: once a year.

Regulatory basis: K.A.R. 28-51-103(f); KDHE Application Guide, contract staff section.

E-1. Personnel Under Hourly or Per-Visit Contracts

[TAYLOR TO DECIDE: whether the agency will use any contract caregivers. If none, this policy states that all staff are employees and no contract personnel are used.] [VERIFY: worker classification law. Under 29 CFR 795.105, a label does not decide status; the test is whether the worker is economically dependent on the business or in business for themself. Any contract worker needs a written contract with the terms K.A.R. 28-51-103(f) lists.][1]

If the agency uses contract personnel, each individual or business signs a written contract that includes: a statement that clients receive supportive care services from the agency; a description of the services each will provide; a statement that each follows all agency policies, including qualifications; a statement that each takes part in developing plans of care; how the agency controls, coordinates, and evaluates their services; the procedures for progress notes, scheduling, and periodic client evaluations; and how charges and reimbursement are set.[2]

Adoption

The governing body of Golden Rule Home Care & Concierge Services LLC adopts the policies in this section.[3] Taylor Anderson, as sole member and owner of the LLC, approves them and reviews them once a year or sooner when a rule changes.[4]

Signature: _____ **Date:** _____

Taylor Anderson, Owner, Golden Rule Home Care & Concierge Services LLC

Effective date: Jan. 1, 2027. Next review date: Jan. 1, 2028.

Client Review

Client redlines: mark any changes on this section, then sign and date below. A digital signature (for example DocuSign) is accepted in place of ink.

Client signature: _____

Printed name: _____

Date: _____

Client signature (digital)

Date signed

Notes

1. 29 CFR 795.105(a); K.A.R. 28-51-103(f). Required: Under federal wage law, labeling a worker an independent contractor does not decide status; the test is whether the worker is economically dependent on the employer for work or in business for themself. Anyone working under an hourly or per-visit contract must have a written contract with the agency that includes the listed provisions. Source: 29 CFR 795.105; Kansas Register, May 5, 2022.
2. K.A.R. 28-51-103(f)(1) to (7). Required: Each individual or business under an hourly or per-visit contract has a written contract with the agency covering seven items: services provided by the agency, a description of services, conformity with agency policies including qualifications, participation in plans of care, how the agency controls, coordinates and evaluates the services, procedures for progress notes, scheduling and periodic evaluations, and how charges and reimbursement are set. Source: Kansas Register, May 5, 2022.
3. K.A.R. 28-51-103(a)(3). Required: The governing body adopts, revises and approves the agency's policies and procedures as needed. Source: Kansas Register, May 5, 2022.
4. K.A.R. 28-51-103(a)(3). Allowed: The governing body revises policies as needed. A yearly review is agency choice. Source: Kansas Register, May 5, 2022.